

tures, but only with such limited power of inquiry as is shown to exist when the rule of constitutional interpretation just stated is rightly applied. The latter proposition has further support in *Harriman v. Interstate Commerce Commission*, 211 U. S. 407, 417-419, and *Federal Trade Commission v. American Tobacco Company*, 264 U. S. 298, 305-306.

With this review of the legislative practice, congressional enactments and court decisions, we proceed to a statement of our conclusions on the question.

We are of opinion that the power of inquiry—with process to enforce it—is an essential and appropriate auxiliary to the legislative function. It was so regarded and employed in American legislatures before the Constitution was framed and ratified. Both houses of Congress took this view of it early in their history—the House of Representatives with the approving votes of Mr. Madison and other members whose service in the convention which framed the Constitution gives special significance to their action—and both houses have employed the power accordingly up to the present time. The acts of 1798 and 1857, judged by their comprehensive terms, were intended to recognize the existence of this power in both houses and to enable them to employ it “more effectually” than before. So, when their practice in the matter is appraised according to the circumstances in which it was begun and to those in which it has been continued, it falls nothing short of a practical construction, long continued, of the constitutional provisions respecting their powers, and therefore should be taken as fixing the meaning of those provisions, if otherwise doubtful.¹⁹

¹⁹ *Stuart v. Laird*, 1 Cranch 299, 309; *Martin v. Hunter's Lessee*, 1 Wheat. 304, 351; *Ames v. Kansas*, 111 U. S. 449, 469; *Knowlton v. Moore*, 178 U. S. 41, 56, 92; *Fairbank v. United States*, 181 U. S. 283, 306, *et seq.*